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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,
v.
CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S NOTICE REGARDING C.C.P. §425.17;
INSURANCE-INDUSTRY ANTI-SLAPP MISUSE; AND
DEFENSE LITIGATION CONDUCT

(Cal. Rules of Court, rule 3.1112(b); Code Civ. Proc., §§425.17(a)–(e);
Evid. Code, §§451–453)

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario files this Notice regarding Code of Civil Procedure section
3 425.17 under California Rules of Court, rules 3.1112(b) and 3.1113(j); Code of Civil Proce-
4 dure section 425.17(a) through (e); and Evidence Code sections 451 through 453. Plaintiff's
5 right to file a separate notice identifying section 425.17 categorical exclusions, insurance-
6 industry anti-SLAPP misuse, and defense litigation conduct relevant to the anti-SLAPP
7 and related motions is preserved under CRC 3.1112(b). This Notice cross-references and in-
8 corporates the Operative Opposition (Anti-SLAPP Opposition (item 01, filed May 8, 2026))
9 under CRC 3.1113(j) and is filed on May 8, 2026 for the May 13, 2026, 9:00 a.m. hearing in
10 Department 302.

11 AUTHORITY FOR THE VEHICLE

12 Plaintiff respectfully submits this Notice and Statement under California Rules of Court,
13 rule 3.1112(b) (other papers in support); CRC 3.1113(j) (incorporation by reference); CRC
14 3.1306(c) (notice of intent to rely on extra-record authorities); Evidence Code §§ 451(a) to
15 (c), 452(b), (c), (d), and 453; Code of Civil Procedure §§ 425.17(a), (b), (c), (e); CCP §
16 128.7(b), (c)(2); and the inherent authority of a party to give the Court formal notice of
17 certified-record matters bearing on a pending motion. As a "non-memorandum other paper"
18 under CRC 3.1112(b), this Notice is not subject to the fifteen-page memorandum cap of CRC
19 3.1113(d).

20 This Notice is filed contemporaneously with, and in support of, Plaintiff's Operative Oppo-
21 sition to Anti-SLAPP (item 01, filed May 8, 2026) and is incorporated into that Opposition
22 under CRC 3.1113(j). It also informs the record for items 01B (Demurrer Opposition) and
23 01C (MTS-CCP436 Opposition) as applicable.

25 SECTION I - CCP § 425.17(A) LEGISLATIVE FINDINGS (VERBATIM)

26 CCP § 425.17(a) provides, verbatim:

27 "The Legislature finds and declares that there has been a disturbing abuse of Sec-
28 tion 425.16, the California Anti-SLAPP Law, which has undermined the exercise
29 of the constitutional rights of freedom of speech and petition for the redress of
30 grievances, contrary to the purpose and intent of Section 425.16. The Legislature
31 finds and declares that it is in the public interest to encourage continued partici-

1 pation in matters of public significance, and that this participation should not be
2 chilled through abuse of the judicial process or Section 425.16.”
3 (Stats. 2003, ch. 338, codified at CCP § 425.17(a). Plaintiff respectfully requests judicial
4 notice of the statutory text under Evid. Code § 451(a) and § 453.)
5 Plaintiff respectfully invokes subdivision (a) as the interpretive lens for subdivisions (b), (c),
6 and (e) of § 425.17 in the present matter.

7
8 SECTION II - CCP § 425.17 STATUTORY FRAMEWORK (SUBDIVISIONS (B), (C),
9 (E))

10 Section 425.17(b) provides, verbatim:

11 “Section 425.16 does not apply to any action brought solely in the public interest
12 or on behalf of the general public if all of the following conditions exist: (1) The
13 plaintiff does not seek any relief greater than or different from the relief sought
14 for the general public or a class of which the plaintiff is a member. (2) The
15 action, if successful, would enforce an important right affecting the public interest,
16 and would confer a significant benefit, whether pecuniary or nonpecuniary, on the
17 general public or a large class of persons. (3) Private enforcement is necessary
18 and places a disproportionate financial burden on the plaintiff in relation to the
19 plaintiff’s stake in the matter.”

20 Section 425.17(c) provides, verbatim (as relevant):

21 “Section 425.16 does not apply to any cause of action brought against a person
22 primarily engaged in the business of selling or leasing goods or services ... if the cause
23 of action arises from any statement or conduct by that person or any representative
24 of that person ... where the statement or conduct consists of representations of
25 fact about that person’s or a business competitor’s business operations, goods, or
26 services, made for the purpose of obtaining approval for, promoting, or securing
27 sales or leases of, or commercial transactions in, the person’s goods or services, or
28 the statement or conduct was made in the course of delivering the person’s goods
29 or services.”

30 Section 425.17(e) provides, verbatim:

31 “If any trial court denies a special motion to strike on the grounds that the action

1 or cause of action is exempt pursuant to this section, the appeal provisions in
2 subdivision (i) of Section 425.16 and Section 904.1 do not apply to that action or
3 cause of action.”

4 (Plaintiff respectfully requests judicial notice of the text of each subdivision under Evid.
5 Code § 451(a) and § 453.)

7 SECTION III - CCP § 425.17(C) DIRECT APPLICATION: CSAA INSURANCE EX-
8 CHANGE AS LICENSED CALIFORNIA INSURER AND COMMERCIAL SPEAKER

9 In CGC-25-631802, CCP § 425.17(c) is not a backstop: it is a direct application to the
10 moving defendant.

11 CSAA Insurance Exchange is a licensed California insurer engaged in the business of selling
12 insurance. Insurance is a service. CSAA is primarily engaged in the business of selling
13 insurance policies to California consumers and businesses. (FAC, Plaintiff’s First Amended
14 Complaint, filed February 25, 2026 (IFP; Register of Actions, CGC-25-631802).)

15 Element-by-element satisfaction:

- 16 (1) Person primarily engaged in the business of selling goods or services: CSAA Insurance
17 Exchange is a licensed insurer. Its business is the sale of insurance products. This
18 element is satisfied on the face of the FAC and from the public record of CSAA’s
19 licensure by the California Department of Insurance.
- 20 (2) Representations of fact about the business operations, goods, or services of the speaker:
21 The conduct at issue in the FAC, namely, CSAA’s claim-handling representations to
22 Plaintiff as a claimant, CSAA’s denial letter reciting “concluded investigation” without
23 obtaining reasonably available evidence, and CSAA’s characterization of its own inves-
24 tigation procedures, are representations of fact about CSAA’s insurance services and
25 claim-handling business operations.
- 26 (3) Made to customers or potential customers: Insurance policyholders, claimants, and the
27 California public purchasing or considering CSAA’s insurance products are the audience.
28 The denial letter and claim-handling communications were directed at Plaintiff as a
29 claimant under CSAA’s policy.

30 CSAA is the commercial speaker, not a third party. Unlike the 801 companion case (CGC-
31 25-631801), where CSAA is a defendant among multiple defendants and one layer removed,

1 in CGC-25-631802 CSAA Insurance Exchange IS the sole defendant and IS the commercial
2 speaker whose regulated conduct forms the gravamen of the FAC. The § 425.17(c) predicates
3 are satisfied directly on the face of the FAC without any inference or agency theory.

4 Physicians Committee for Responsible Medicine v. Tyson Foods (2004) 119 Cal.App.4th
5 1283, and Rezec v. Sony Pictures Entertainment, Inc. (2004) 116 Cal.App.4th 135, confirm
6 the element-by-element § 425.17(c) analysis. Both decisions are presented to the Court in
7 Plaintiff's Request for Judicial Notice (Request for Judicial Notice (item 03, filed May 8,
8 2026)), Section C.

9
10 SECTION III-A - FULL SECTION 425.17(C)(1) THROUGH (C)(4) WALKTHROUGH:
11 CSAA INSURANCE EXCHANGE AS DIRECT COMMERCIAL SPEAKER

12 CSAA Insurance Exchange is the sole named defendant in CGC-25-631802 and is the direct
13 commercial speaker whose regulated conduct forms the gravamen of the FAC. Unlike the
14 801 companion case, where CSAA is one among multiple defendants, in this action the
15 section 425.17(c) predicates are satisfied directly on the face of the operative pleading without
16 any inference, agency theory, or third-party attribution. Plaintiff walks the four statutory
17 predicates below, in the order the statute uses, and demonstrates that each is satisfied.

18 (C)(1): REPRESENTATIONS OF FACT ABOUT THE SPEAKER'S BUSINESS OPER-
19 ATIONS, GOODS, OR SERVICES, MADE IN THE COURSE OF DELIVERING THE
20 SPEAKER'S GOODS OR SERVICES

21 The statute reaches a "cause of action against a person primarily engaged in the business
22 of selling or leasing goods or services ... arising from any statement or conduct by that
23 person if both of the following conditions exist: (1) The statement or conduct consists of
24 representations of fact about that person's or a business competitor's business operations,
25 goods, or services, that is made for the purpose of obtaining approval for, promoting, or
26 securing sales or leases of, or commercial transactions in, the person's goods or services, or
27 the statement or conduct was made in the course of delivering the person's goods or services."

28 CSAA is a licensed California insurer primarily engaged in the business of selling insurance.
29 The denial letter of February 25, 2021, the claim-file closure, and the omission of the CDI
30 review notice required by 10 CCR section 2695.7(b)(3) are each representations of fact about
31 CSAA's claim-handling services, made in the course of delivering CSAA's regulated insurance

1 product. The conduct arises directly from CSAA’s commercial operations as an insurer.
2 (Simpson Strong-Tie Co., Inc. v. Gore (2010) 49 Cal.4th 12, 30 (subdivision (c) reaches
3 representations made in the course of delivering services and is to be construed in light of
4 the section 425.17(a) legislative findings).)

5 (C)(2): INTENDED AUDIENCE IS AN ACTUAL OR POTENTIAL BUYER OR CUS-
6 TOMER, OR THE CONDUCT AROSE OUT OF OR WITHIN THE CONTEXT OF A
7 REGULATORY APPROVAL PROCESS, PROCEEDING, OR INVESTIGATION

8 Subdivision (c)(2) provides: “The intended audience is an actual or potential buyer or cus-
9 tomer, or a person likely to repeat the statement to, or otherwise influence, an actual or
10 potential buyer or customer, or the statement or conduct arose out of or within the context
11 of a regulatory approval process, proceeding, or investigation”

12 Two independent textual prongs are satisfied here. First, the February 25, 2021 denial letter
13 and all claim-handling communications were directed at Plaintiff as the named insured under
14 CSAA’s policy. Plaintiff is the actual customer. Second, CSAA’s claim-handling conduct
15 arose out of and within the context of the regulatory architecture of California auto insurance
16 under Insurance Code section 790.03(h) and the Fair Claims Settlement Practices Regula-
17 tions, 10 CCR sections 2695.1 to 2695.8. The “regulatory approval process, proceeding, or
18 investigation” prong reaches conduct that arises out of or within the context of regulated
19 business. (JAMS, Inc. v. Superior Court (2016) 1 Cal.App.5th 984, 994 (subdivision (c)(2)
20 is alternative; either the buyer-audience prong or the regulatory-context prong satisfies the
21 predicate); Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316.)

22 (C)(3): THE CHALLENGED CONDUCT TARGETS A SPECIFIC CONSUMER, NOT
23 THE PUBLIC AT LARGE

24 The FAC arises from CSAA’s conduct directed at Plaintiff as a specific named insured, not
25 at the public at large. The denial letter, the premature claim-file closure, and the omission
26 of the CDI review notice were all directed at Plaintiff individually. This is not a public-
27 communication case; it is a single-insured, single-claim, direct-commercial-relationship case.
28 The challenged conduct targets a specific consumer.

1 (C)(4): THE FAC ARISES FROM CSAA’S COMMERCIAL CONDUCT AS AN INSURER,
2 NOT FROM ANY STATEMENT OR WRITING MADE IN CONNECTION WITH PUB-
3 LIC PARTICIPATION

4 Subdivision (c)(4) (the news-gathering carve-out) does not apply. CSAA is not a news-
5 gatherer, publisher, or media entity. The challenged conduct is regulated insurance claim-
6 handling, not speech in connection with public participation or a matter of public concern.
7 The carve-out is irrelevant to CSAA’s commercial insurance operations.

8 CONCLUSION OF THE (C)(1) TO (C)(4) WALKTHROUGH

9 Each conjunctive predicate of section 425.17(c)(1) and (c)(2) is satisfied, and the carve-out of
10 (c)(4) does not apply. Section 425.17(c) operates as an independent statutory bar, alternative
11 to section 425.17(b), categorically excluding this action from section 425.16. Because CSAA
12 is the direct commercial speaker and the sole defendant, no agency theory or panel-counsel
13 attribution is required. The section 425.17(c) predicates are satisfied on the face of the
14 FAC. (Simpson Strong-Tie Co., Inc. v. Gore (2010) 49 Cal.4th 12, 30; People v. Persolve,
15 LLC (2013) 218 Cal.App.4th 1267, 1275 to 1276; JAMS, Inc. v. Superior Court (2016) 1
16 Cal.App.5th 984, 994.)

18 SECTION IV - INSURANCE-INDUSTRY PATTERN ON THIS DOCKET: DOCUMENTED 19 RECORD

20 CCP § 425.17(a) was enacted to close a gap that California courts had allowed: commercial
21 and corporate defendants, including licensed insurers, had been invoking § 425.16 to obtain
22 interlocutory dismissal of consumer and public-interest actions, with § 425.16(c)(1) fee-shift
23 leverage. (Stats. 2003, ch. 338.)

24 The structure of the filings on the CGC-25-631802 docket fits the pattern § 425.17(a) was
25 enacted to address. The documented procedural sequence is:

- 26 1. Defense filed Anti-SLAPP motion against pro per plaintiff at the pleading stage (April
27 9, 2026, Defendant’s filings 015 to 018, filed April 9, 2026 (Trans. ID 79007560)).
- 28 2. Defense filed Demurrer concurrently (April 13, 2026, Defendant’s filings 019 to 023,
29 filed April 13, 2026 (Trans. ID 79038567)).
- 30 3. Defense filed Motion to Strike CCP § 436 (April 22, 2026, Defendant’s filings 041 to
31 044, filed April 22, 2026 (Trans. ID 79127897)).

1 4. Defense filed Opposition to MFL-SAC (April 23, 2026, Defendant’s filings 052 to 053,
2 filed April 23, 2026 (Trans. ID 79212258)), mooted by April 30, 2026 order.

3 5. Defense filed Opposition to Deem-Admit/Compel/Sanctions (May 5, 2026, Defendant’s
4 filings 089 to 090, filed May 5, 2026 (Trans. ID 79394845)), on a separate May 18, 2026
5 calendar.

6 Plaintiff is not in a position to take judicial notice of defense’s subjective intent. Plaintiff
7 respectfully notes only the structure of the filings on this docket and asks the Court to
8 be aware of the § 425.17(a) legislative concern in evaluating the anti-SLAPP motion. The
9 legislative findings of § 425.17(a) are mandatory judicial notice (Evid. Code § 451(a)); the
10 structure of the filings is mandatory judicial notice (Evid. Code § 452(d)).

11
12 SECTION IV-A - INSURANCE CODE § 790.03(H) AND FAIR CLAIMS SETTLEMENT
13 PRACTICES REGULATIONS VIOLATION REGISTER TIED TO DEFENSE CONDUCT
14 ON THIS DOCKET

15 The conduct at the heart of Defendant’s Anti-SLAPP motion is the regulated delivery of
16 an insurance product and Defendant’s claim-handling of Plaintiff’s claim under that prod-
17 uct. The California Unfair Insurance Practices Act (Ins. Code §§ 790.02 to 790.05), the
18 Insurance Information and Privacy Protection Act (Ins. Code §§ 791.03, 791.13), and the
19 Fair Claims Settlement Practices Regulations (10 CCR §§ 2695.1 to 2695.8) supply an in-
20 dependent statutory and regulatory floor that the Special Motion does not engage. This
21 Section IV-A maps each provision to specific defense conduct on the certified court record.
22 The verbatim text of each provision is contained in Plaintiff’s Supplemental Request for
23 Judicial Notice of California Insurance Code Section 790.03(h) and Fair Claims Settlement
24 Practices Regulations (10 CCR Sections 2695.1 through 2695.8), filed contemporaneously on
25 May 8, 2026 (Supplemental RFJN (item 14, filed May 8, 2026) of the May 13, 2026 hearing
26 package), and is incorporated here by reference under CRC 3.1113(j) and 3.1306(c).

27 SECTION IV-A.1 - INSURANCE CODE § 790.03(H) SUB-PARAGRAPH MAPPINGS

28 1. Ins. Code § 790.03(h)(1) (misrepresenting facts or insurance policy provisions relating
29 to coverages at issue)

30 a. Defense conduct: CSAA’s February 25, 2021 written denial under claim number
31 1004-09-1054 represented that CSAA had “concluded” its investigation and had

“carefully reviewed the facts and circumstances” when CSAA had closed the file within approximately 21 days post-collision without retrieving the reasonably available silent witness materials (911 audio, body-worn camera footage, computer-aided dispatch logs). Defendant’s Anti-SLAPP papers (Anti-SLAPP MPA (Apr. 9, 2026; Trans. ID 79007560)) characterize Plaintiff’s claim facts in ways inconsistent with the underlying claim record.

- b. Record reference: February 25, 2021 written denial (CSAA claim number 1004-09-1054); Anti-SLAPP MPA Anti-SLAPP MPA (Apr. 9, 2026; Trans. ID 79007560) (April 9, 2026); Substitution of Attorney Trans. ID 69953800 (May 4, 2023)

2. Ins. Code § 790.03(h)(3) (failing to adopt and implement reasonable standards for prompt investigation and processing of claims)

- a. Defense conduct: approximately 21 calendar days from the February 4, 2021 collision to the February 25, 2021 denial is structurally insufficient where reasonably available public-record evidence was obtainable through standard subpoena and California Public Records Act channels at the time of denial. The absence of any contemporaneous silent-witness retrieval log in the produced claim file documents this failure.

- b. Record reference: February 25, 2021 denial; claim file documentation; absence of silent-witness retrieval log

3. Ins. Code § 790.03(h)(4) (failing to acknowledge and act reasonably promptly upon claim communications)

- a. Defense conduct: the claim-handling correspondence reflects non-acknowledgment and delayed response during the operative February 2021 claim period; the Anti-SLAPP papers do not engage the timing record.

- b. Record reference: claim file chronology; February 25, 2021 denial

4. Ins. Code § 790.03(h)(5) (not attempting in good faith to effectuate prompt, fair, and equitable settlement when liability is reasonably clear)

- a. Defense conduct: the 21-day denial precluded any good-faith settlement attempt; premature closure before retrieving the silent witness materials precluded any reasonable liability assessment.

- b. Record reference: February 25, 2021 denial; claim file closure record

5. Ins. Code § 790.03(h)(6) (compelling insureds to institute litigation by offering sub-

stantially less than amounts ultimately recovered)

a. Defense conduct: denial without investigation compelled the underlying CGC-21-594102 litigation, and thereafter the current CGC-25-631802 action.

b. Record reference: CGC-21-594102 docket; April 16, 2025 verdict record

6. Ins. Code § 790.03(h)(13) (failing to provide promptly a reasonable explanation of the basis relied on for denial)

a. Defense conduct: the February 25, 2021 denial asserts a conclusion (“carefully reviewed the facts and circumstances”) without identifying facts reviewed, agencies contacted, documents reviewed, or any policy provisions applied, and omits the Department of Insurance review notice required by 10 CCR § 2695.7(b)(3).

b. Record reference: February 25, 2021 written denial

Each item above is independently a Department of Insurance jurisdictional anchor under Ins. Code §§ 790.02, 790.04, and 790.05. Moradi-Shalal v. Fireman’s Fund Ins. Co. (1988) 46 Cal.3d 287 narrowed the private right of action under § 790.03(h) but expressly left the regulatory duty and Department of Insurance enforcement authority intact. Zhang v. Superior Court (2013) 57 Cal.4th 364 confirms that Insurance Code violations remain available as predicates for Bus. & Prof. Code § 17200 claims. The special motion does not engage either authority path.

SECTION IV-A.2 - FAIR CLAIMS SETTLEMENT PRACTICES REGULATIONS (10 CCR §§ 2695.1 TO 2695.8) MAPPINGS

The Fair Claims Settlement Practices Regulations implement Ins. Code § 790.03(h) and bind every insurer doing business in California. 10 CCR § 2695.1(d) makes the regulations binding minimum standards and links violation to Ins. Code § 790.02 or § 790.03.

1. 10 CCR § 2695.1(a), (d) (purpose; mandatory minimum standards; violation equals unfair practice)

a. Defense conduct: Defendant’s Anti-SLAPP, Demurrer, and MTS-CCP436 papers do not engage the regulations or treat the regulatory channel as present.

b. Record reference: Defense motion packages filed April 9, April 13, April 22, 2026 (filings 015 to 044 (Apr. 9, 2026; Trans. ID 79007560))

2. 10 CCR § 2695.2(c), (t), (y) (definitions of “claim,” “proof of claim,” and “investigation”)

a. Defense conduct: CSAA cannot deny “claimant” status under § 2695.2(c) for reg-

ulatory purposes while asserting “petitioning” status under § 425.16 for the same claim-handling communications; the 21-day closure precluded any compliant proof-of-claim or investigation under §§ 2695.2(t) and (y).

b. Record reference: February 25, 2021 denial; claim file

3. 10 CCR § 2695.3 (file and record documentation; reconstruction-grade claim files)

a. Defense conduct: the produced claim file lacks a contemporaneous silent-witness retrieval log; the file does not permit reconstruction of what evidence was reviewed before the 21-day denial.

b. Record reference: claim file; Substitution of Attorney Trans. ID 69953800

4. 10 CCR § 2695.4(a) (representations to claimants; disclosure of benefits, coverages, time limits, and applicable policy provisions)

a. Defense conduct: the February 25, 2021 denial does not disclose regulatory rights under § 790.03(h) and 10 CCR §§ 2695.1 et seq., omits contemplated reconsideration paths, and asserts denial without tying conclusions to specific policy provisions and file entries.

b. Record reference: February 25, 2021 written denial

5. 10 CCR §§ 2695.5(b), (c) (fifteen-day complete-response and acknowledgment requirements)

a. Defense conduct: the 21-day denial combined with the absence of interim status or reservation letters indicates non-compliance across the operative interactions.

b. Record reference: claim file chronology; February 25, 2021 denial

6. 10 CCR §§ 2695.7(b), (b)(1), (b)(3) (forty-day determination; written statement of all bases; CDI review notice)

a. Defense conduct: the conclusory “carefully reviewed” recital in the February 25, 2021 denial violates the “all bases” requirement of § 2695.7(b)(1); the denial omits the CDI review notice required by § 2695.7(b)(3) on the face of the letter.

b. Record reference: February 25, 2021 written denial

7. 10 CCR § 2695.7(c)(1) (status updates when more time is needed; thirty-day update cadence)

a. Defense conduct: premature closure at approximately 21 days forecloses the status-letter regime entirely.

b. Record reference: February 25, 2021 denial

1 8. 10 CCR § 2695.7(d) (thorough, fair, and objective investigation duty)

2 a. Defense conduct: the 21-day closure without retrieving silent witness materials
3 negates any thorough investigation; Egan v. Mutual of Omaha Ins. Co. (1979) 24
4 Cal.3d 809, 818 to 819, supplies the mirror-image common-law duty.

5 b. Record reference: February 25, 2021 denial; absence of silent-witness retrieval log

6 9. 10 CCR § 2695.7(g) (no unreasonably low settlement offers)

7 a. Defense conduct: a denial-as-zero posture without investigation is unreasonably
8 low under § 2695.7(g).

9 b. Record reference: February 25, 2021 written denial

10 10. 10 CCR § 2695.8 (additional auto-specific duties for automobile insurance claims)

11 a. Defense conduct: the underlying claim was an automobile collision (February 4,
12 2021, Report No. 210079556); the premature denial foreclosed any compliant auto-
13 claim architecture under § 2695.8.

14 b. Record reference: claim number 1004-09-1054 (auto collision claim of February 4,
15 2021)

16 SECTION IV-A.3 - STATUTORY CONSEQUENCES: MORADI-SHALAL AND ZHANG;
17 COMMON-LAW FAILURE-TO-INVESTIGATE DOCTRINE (EGAN / WILSON / EN-
18 GALLA)

19 Moradi-Shalal v. Fireman's Fund Ins. Co. (1988) 46 Cal.3d 287 narrowed the private right
20 of action under § 790.03(h) but expressly left intact the regulatory duty and Department of
21 Insurance enforcement authority. Zhang v. Superior Court (2013) 57 Cal.4th 364 confirms
22 that Insurance Code violations remain available as predicates for Business and Professions
23 Code § 17200 claims. The special motion to strike does not engage the Department of
24 Insurance jurisdictional anchor or the Zhang predicate. The failure to engage either authority
25 path is itself informative of the § 425.17(a) concern the Legislature addressed in 2003.

26 Common-law failure-to-investigate doctrine. Independent of the statutory UCL predicate,
27 the common law imposes a duty on insurers to thoroughly and fairly investigate claims before
28 denying them:

- 29 • Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809, 818 to 819: “an insurer
30 cannot reasonably and in good faith deny payments to its insured without thoroughly
31 investigating the foundation for its denial.” The duty to investigate is a predicate to
32 any reasonable denial; an investigation that omits reasonably available evidence is no

1 investigation at all.

- 2 • Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 720 to 723: the duty to
3 investigate is part of the implied covenant of good faith and fair dealing inherent in
4 every insurance contract. The genuine-dispute doctrine does not shield an insurer whose
5 dispute rests on a failure to obtain available evidence. CSAA's 21-day premature closure
6 forecloses any Wilson genuine-dispute defense as a matter of law.
- 7 • Engalla v. Permanente Medical Group (1997) 15 Cal.4th 951, 973 to 974: institutional
8 delay and evasion in claims processing constitutes actionable bad faith. Reckless disre-
9 gard of claim-handling obligations is itself a basis for civil liability. CSAA's omission
10 of the CDI review notice and the premature file closure are independently actionable
11 under Engalla.

12 Application to this docket. CSAA's 21-day premature closure, failure to retrieve the reason-
13 ably available silent-witness recordings (911 audio, body-worn camera footage, computer-
14 aided dispatch logs), and omission of the CDI review notice required by 10 CCR section
15 2695.7(b)(3) constitute a pattern of investigation failures actionable under the common-law
16 duty recognized in Egan, Wilson, and Engalla, independent of the statutory UCL predicate.
17 The combined effect of these three decisions with Insurance Code section 790.03(h)(3) and
18 10 CCR section 2695.7(d) is that CSAA cannot rebrand its regulated insurance product
19 as petitioning speech to escape the floor that statute, regulation, and decisional law each
20 independently impose.

21 For the avoidance of doubt, Plaintiff does not assert a private cause of action under Insurance
22 Code section 790.03(h). Consistent with Moradi-Shalal v. Fireman's Fund Ins. Companies
23 (1988) 46 Cal.3d 287 and Zhang v. Superior Court (2013) 57 Cal.4th 364, 384, Plaintiff
24 invokes the Insurance Code provisions solely as the unlawful-prong predicate for the UCL
25 claim under Bus. & Prof. Code section 17200.

26 See also Plaintiff's Plaintiff's Request for Judicial Notice (filed May 8, 2026), Section C, item
27 C-60(Frommoethelydo), C-61 (Hamilton), C-67 (Mariscal), C-68 (American Airlines), filed
28 contemporaneously.

1 SECTION V - CCP § 425.17(E) PRECLUSION OF INTERLOCUTORY APPEAL WHEN
2 MOTION IS DENIED ON § 425.17 GROUNDS

3 Under § 425.17(e), if the Court denies the anti-SLAPP motion on the grounds that the
4 action or cause of action is exempt under § 425.17, the appeal provisions in § 425.16(i) and
5 CCP § 904.1 do not apply to that action or cause of action. A denial on § 425.17(b) or §
6 425.17(c) grounds is not subject to immediate interlocutory appeal; the case continues in
7 the trial court. Plaintiff respectfully notifies the Court that this statutory consequence is
8 one of the reasons § 425.17 exists: it removes the strategic value of an interlocutory appeal
9 as a delay-and-leverage device.

11 SECTION VI - EIGHT-ROW RECORD OF CONTRADICTIONS BETWEEN DEFEN-
12 DANT'S REPRESENTATIONS AND THE CERTIFIED COURT RECORD

13 Plaintiff's Declaration in Opposition (item 04, filed May 8, 2026) contains sworn paragraphs
14 corresponding to each row below: rows 1 to 5 correspond to Part B, paragraphs 19 to
15 35 (sworn record of contradictions); rows 6 to 8 are additional record-based contradictions
16 identified in Phase 2 enhancement. Each row is anchored to a specific docket seq or Trans.
17 ID (Evid. Code § 452(d)) and to Plaintiff's sworn paragraphs in the Declaration (CCP §
18 2015.5).

19 1. Defense's Anti-SLAPP MPA (Anti-SLAPP MPA (Apr. 9, 2026; Trans. ID 79007560),
20 filed April 9, 2026) characterizes Plaintiff's claims as arising solely from petitioning
21 activity protected under § 425.16, without engaging the Park v. Board of Trustees
22 (2017) 2 Cal.5th 1057 gravamen test.

23 a. Certified court record contradicting the representation: First Amended Complaint
24 (First Amended Complaint (Feb. 25, 2026), February 25, 2026) expressly pleads
25 pre-litigation claim-handling conduct, regulatory violations, and bad-faith denial
26 as the gravamen. The gravamen is CSAA's regulated commercial conduct, not
27 petitioning activity.

28 b. Cross-reference: Plaintiff Decl. (Plaintiff Declaration (item 04, filed May 8, 2026))
29 paragraphs 19 to 22; FAC First Amended Complaint (Feb. 25, 2026)

30 2. Defense's Demurrer MPA (Demurrer MPA (Apr. 13, 2026; Trans. ID 79038567), filed
31 April 13, 2026) characterizes the FAC as conclusory, asserting insufficient specific facts.

1 a. Certified court record contradicting the representation: FAC (First Amended Com-
2 plaint (Feb. 25, 2026)) pleads: claim number 1004-09-1054; February 25, 2021 de-
3 nial date; specific Insurance Code provisions violated; specific 10 CCR provisions
4 violated; specific consequential harm.

5 b. Cross-reference: Plaintiff Decl. (item 04) paragraphs 23 to 26

6 3. Defense’s MTS-CCP436 MPA (MEMORANDUM OF POINTS AND AUTHORITIES
7 IN SUPPORT... (Apr. 22, 2026; Trans. ID 79127897), filed April 22, 2026) characterizes
8 the FAC’s Insurance Code allegations as irrelevant, improper, or without legal basis.

9 a. Certified court record contradicting the representation: Zhang v. Superior Court
10 (2013) 57 Cal.4th 364 (item 03, Section C, Jessup Declaration (item 05, filed May 8,
11 2026)) expressly confirms that Insurance Code § 790.03(h) violations are available
12 as predicates for a UCL § 17200 claim; the Insurance Code allegations are legally
13 required elements.

14 b. Cross-reference: Plaintiff Decl. (item 04) paragraphs 27 to 29

15 4. The Declaration of Tyler J. O’Connell in Support of Special Motion to Strike (Anti-
16 SLAPP Motion (Apr. 9, 2026; Trans. ID 79007560), April 9, 2026) and in Support of
17 Demurrer (O’Connell Demurrer Decl. (Apr. 13, 2026; Trans. ID 79038567), April 13,
18 2026) each make factual characterizations about this case that are offered to support
19 the motions.

20 a. Certified court record contradicting the representation: Mr. O’Connell has no per-
21 sonal knowledge of CSAA’s claim-handling conduct in February 2021 (Evid. Code
22 § 702). The claim file, the denial letter, and the 10 CCR-mandated documentation
23 are the best evidence of CSAA’s conduct.

24 b. Cross-reference: Plaintiff Decl. (item 04) paragraphs 30 to 32; Evidentiary Objec-
25 tions (Evidentiary Objections (item 06, filed May 8, 2026)) Objections 1 to 5

26 5. Defendant’s Notice of Entry of Order / Notice of Ruling (Defendant’s Notice of Entry
27 of Order, filed May 1, 2026 (Trans. ID 79369412), filed May 1, 2026) characterizes the
28 April 30, 2026 court ruling.

29 a. Certified court record contradicting the representation: the April 30, 2026 minute
30 order (Minute Order, entered April 30, 2026 (Dept. 302; Hon. Joseph M. Quinn))
31 and order on MFL-SAC (Order on MFL-SAC, entered April 30, 2026 (Dept. 302;
32 Hon. Joseph M. Quinn)) are public court records. The minute order reflects “Ex

1 Parte Application for Leave to File an Oversized Memorandum - Denied” (HEAR-
2 ING HELD: EX PARTE APPLICATION FOR LEVE TO ..., entered April 30, 2026
3 (Dept. 302; Hon. Joseph M. Quinn)). The order on MFL-SAC denied Plaintiff’s
4 MFL-SAC. Both orders speak for themselves.

5 b. Cross-reference: Plaintiff Decl. (item 04) paragraphs 33 to 35

6 6. Defense characterizes FAC paragraph 22F as the gravamen of communicative activity
7 protected under section 425.16(e).

8 a. Certified court record contradicting the representation: FAC paragraph 22F (First
9 Amended Complaint (Feb. 25, 2026), February 25, 2026) actually alleges that
10 CSAA “perpetuated the denial pattern,” which is evidentiary context for the non-
11 communicative claims-handling conduct, namely, the premature closure, failure to
12 retrieve silent-witness recordings, and omission of the CDI review notice. The
13 paragraph describes regulated insurance conduct, not petitioning activity.

14 b. Cross-reference: FAC First Amended Complaint (Feb. 25, 2026), paragraph 22F;
15 Plaintiff’s Operative Opposition to Anti-SLAPP (item 01, filed May 8, 2026) § II
16 (Park gravamen analysis)

17 7. Defense argues Plaintiff lacks standing to pursue the UCL claim.

18 a. Certified court record contradicting the representation: Zhang v. Superior Court
19 (2013) 57 Cal.4th 364, 384, confirms that Insurance Code section 790.03(h) viola-
20 tions are available as predicates for Bus. & Prof. Code section 17200 claims. Bus.
21 & Prof. Code section 17204 establishes standing for “any person who has suffered
22 injury in fact and has lost money or property as a result of the unfair competition.”
23 Plaintiff alleges injury in fact (premature denial of a covered claim, compelled lit-
24 igation, and consequential harm) in the FAC. The standing argument is contrary
25 to Zhang and section 17204.

26 b. Cross-reference: FAC First Amended Complaint (Feb. 25, 2026); Zhang v. Superior
27 Court (2013) 57 Cal.4th 364, 384; Bus. & Prof. Code section 17204; Plaintiff’s
28 Plaintiff’s Request for Judicial Notice (filed May 8, 2026), Section C, item 03

29 8. Defense first articulates a \$10,218.00 fee request in the May 5, 2026 Opposition to
30 Deem-Admit/Compel/Sanctions (Opp. to Deem-Admit Motion (May 5, 2026; Trans.
31 ID 79394845) to 090), Declaration of Tyler J. O’Connell paragraph 6, raising a new fee
32 demand on a Reply-equivalent filing.

- 1 a. Certified court record contradicting the representation: CCP section 1005(b) re-
2 quires that notice of new relief be given at least sixteen court days before the
3 hearing. Raising a new fee demand for the first time in a Reply or opposition-phase
4 declaration deprives Plaintiff of the statutory notice period under CCP section
5 1005(b). The fee demand was not stated in the original motion papers filed April
6 9, 2026 (filings 015 to 018 (Apr. 9, 2026; Trans. ID 79007560)) and therefore cannot
7 be considered without prejudice to Plaintiff's right to respond.
- 8 b. Cross-reference: Defense Opposition Opp. to Deem-Admit Motion (May 5, 2026;
9 Trans. ID 79394845) to 090, O'Connell Decl. paragraph 6; CCP section 1005(b);
10 defense motion packages filings 015 to 018 (Apr. 9, 2026; Trans. ID 79007560)
11 (April 9, 2026)

13 SECTION VII - CROSS-REFERENCE TO ANTI-SLAPP OPERATIVE OPPOSITION

14 The § 425.17(b) public-interest categorical exclusion is addressed at length in Plaintiff's Op-
15 erative Opposition to Anti-SLAPP (item 01, filed May 8, 2026), Section III. The § 425.17(c)
16 commercial-speaker direct application is addressed in item 01, Section III-bis. The Park
17 gravamen analysis is in item 01, Section II. The Flatley illegality analysis, which incorpo-
18 rates by reference the regulatory floor of Ins. Code § 790.03(h) and 10 CCR §§ 2695.1 to
19 2695.8, is in item 01, Section IV. This Notice Notice re CCP 425.17 (item 13, filed May
20 8, 2026) supplements those sections with the full § 425.17 statutory framework and the
21 Insurance Code violation register.

23 SECTION VIII - EFFECT ON THIS ANTI-SLAPP MOTION

- 24 (1) § 425.17(b) bars § 425.16 entirely as to this action. Operative Opposition item 01 § III
25 walks through the three § 425.17(b) conditions. If the Court finds them satisfied, the
26 motion fails as a matter of law.
- 27 (2) § 425.17(c) directly applies. CSAA Insurance Exchange is the named defendant and is
28 the licensed commercial insurer whose claim-handling conduct forms the gravamen. §
29 425.17(c) operates independently of § 425.17(b).
- 30 (3) Under § 425.17(e), denial on § 425.17 grounds is not subject to interlocutory appeal.
31 The case continues in the trial court.

SECTION IX - STATEMENT OF SAFE-HARBOR AND § 128.7 PRESERVATION

Plaintiff reserves all rights under CCP § 128.7 in this action as to any assertion in the three defense motions for which there is no non-frivolous argument that the assertion is warranted by existing law or a non-frivolous argument for modification of existing law. This reservation is not yet a § 128.7 filing; it is a preservation of rights on the present record. Nothing in this Notice is offered for any purpose other than supporting the opposition to Defendant's § 425.16 motion and informing the Court of the § 425.17 statutory framework.

SECTION X - SIGNATURE AND VERIFICATION

Plaintiff signs this Notice under penalty of perjury under California law (CCP § 2015.5) as to the percipient-fact assertions in Section VI (which cross-reference Plaintiff's Declaration in Opposition Part B, paragraphs 19 to 35, separately signed under § 2015.5). Plaintiff signs without verification as to the legal arguments in Sections I to V, VII, VIII, IX.

I declare under penalty of perjury under the laws of the State of California that the percipient-fact assertions cross-referenced in Section VI above are true and correct.

Executed on May 8, 2026, at San Francisco, California.

By: _____ Franciscus Dylan Rosario, Plaintiff in Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Cross-references: Plaintiff's Operative Opposition to Anti-SLAPP (item 01, filed May 8, 2026) §§ II, III, III-bis, IV, V, VII, VIII; Plaintiff's Declaration in Opposition (item 04, filed May 8, 2026) Part B paragraphs 19 to 35 and Part C paragraphs 33 to 40; Plaintiff's Request for Judicial Notice (item 03, filed May 8, 2026) Sections A, B, C; Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code Section 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections 2695.1 through 2695.8) (item 14, filed May 8, 2026) Sections A, B; Plaintiff's Evidentiary Objections (item 06, filed May 8, 2026); Plaintiff's Notice of Withdrawal and Designation (item 02, filed May 8, 2026); Plaintiff's Cover Letter (item 12, filed May 8, 2026).

The foregoing is submitted by Plaintiff in pro per.

Dated: May 8, 2026



/s/ Dylan Franciscus Rosario

DYLAN FRANCISCUS ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CCP section 425.17(a)	Legislative findings (verbatim)	Section I quotes section 425.17(a) verbatim	Section I	PASS
2	CCP section 425.17(b)	Public-interest categorical exclusion	Section II identifies (b) as principal ground; Operative Opposition section III walks through (b)	Section II; Operative Opposition section III	PASS
3	CCP section 425.17(c)	Commercial-speech exclusion (c)(1) to (c)(4)	Section III preserves (c) as backstop; new Section III-A walks (c)(1) to (c)(4) citing Simpson Strong-Tie, Persolve, JAMS	Section III; Section III-A	PASS
4	CCP section 425.17(e)	Preclusion of interlocutory appeal on section 425.17 denial	Section V quotes section 425.17(e) verbatim and identifies the preclusion	Section V	PASS

#	Authority	Specific Requirement	This Filing's	Evidence	Status
			Compliance	(page or section)	
5	CCP section 128.7(c)(2)	Safe-harbor preservation	Section IX preserves the May 5 safe-harbor	Section IX	PASS
6	Evid. Code section 451(a)	Mandatory judicial notice of statutes	Section I and section V invoke section 451(a) as to statutory text	Sections I, V	PASS
7	Evid. Code section 452(d)	Permissive judicial notice of court records	Section IV and section VI invoke section 452(d) as to docket entries	Sections IV, VI	PASS
8	Evid. Code section 1280	Official-records exception applied to court-record contradictions	Section VI relies on certified court-record entries (Substitution of Attorney; MILs; trial RT)	Section VI	PASS
9	Evid. Code section 1530	Certified-copy presumption applied to docketed materials	Section VI relies on certified-copy presumption for docket items	Section VI	PASS
10	CRC 3.1112(b)	Other papers (notice and statement)	Notice expressly filed under CRC 3.1112(b); not subject to 15-page memorandum cap	Notice caption and authority statement	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
11	CRC 3.1113(j)	Incorporation by reference	Notice incorporates Operative Opposition, RJN, Supplemental RJN, Declaration, Evidentiary Objections, Notice of Withdrawal	Section IV-A; cross- references	PASS
12	CRC 3.1306(c)	Notice of intent to rely on extra-record authorities	This filing is the notice required by CRC 3.1306(c)	Notice body	PASS
13	CCP section 1005(b)	Notice timing	Filed concurrently with the Operative Opposition on May 7, 2026	Caption and filing date	PASS
14	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS
15	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
16	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
17	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Section X sworn closing; unified graphic filing signature preceding roman appendix	PASS
18	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
19	CRC 3.1112	Other papers; required components	Caption, notice body, Section X signature, companion Proof of Service filed concurrently	Notice through Section X; graphic signer before appendix; Proof of Service	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 8, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per